

25LBCV00176 25LBCV00176

County: los-angeles

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Case Number: 25LBCV00176 Hearing Date: June 23, 2026 Dept: S28

Preliminary

Matters

A. Evidentiary Objections

i.

Plaintiff's

Objections to Defendant's Evidence in Support of the Motion

The

Court rules on Plaintiff's objections as follows:

1. Objections Nos. 1-8: OVERRULED.

ii.

Defendant'

Objections to Plaintiff's Evidence in Opposition

The

Court rules on Defendants' objections as follows:

1. Objections Nos. 1-12: OVERRULED.

2. Objections Nos. 36-38: SUSTAINED for

lack of foundation.

3. Objections Nos. 39-51: OVERRULED.

4. Objections Nos. 52-58: OVERRULED.

5. Objections Nos. 59-60: SUSTAINED for

lack of foundation.

6. Objection No. 61: OVERRULED.

Analysis

A. ISSUE 1: The subject defect is

trivial as a matter of law (Gov't Code § 830.2).

Defendant

argues that Plaintiff's Dangerous Condition of Public Property claim fails

because the subject defect is trivial as a matter of law under Government Code

section 830.2. (Mot., p. 7.)

A public entity may be held

liable for injuries caused by a dangerous condition on public property. (Gov.

Code, §§ 830, 835.) A condition is "dangerous" if it "creates a substantial (as

distinguished from a minor, trivial or insignificant) risk of injury when such

property or adjacent property is used with due care in a manner in which it is

reasonably foreseeable that it will be used.” (Gov. Code, § 830, subd. (a).)

The Government Claims Act (§ 810 et seq.; the

Act) ‘is a comprehensive statutory scheme that sets forth the liabilities and

immunities of public entities and public employees for torts.’ Section 835 . .

. prescribes the conditions under which a public entity may be held liable for

injuries caused by a dangerous condition of public property. Section 835

provides that a public entity may be held liable for such injuries ‘if the

plaintiff establishes that the property was in a dangerous condition at the time

of the injury, that the injury was proximately caused by the dangerous

condition, [and] that the dangerous condition created a reasonably foreseeable

risk of the kind of injury which was incurred.’ In addition, the plaintiff must

establish that either: (a) ‘[a] negligent or wrongful act or omission of an

employee of the public entity within the scope of his employment created the

dangerous condition,’ or (b) ‘[t]he public entity had . . . notice of the

dangerous condition . . . a sufficient time prior to the injury to have taken

measures to protect against the dangerous condition.’

(Cordova v. City of Los

Angeles (2015) 61 Cal.4th 1099, 1104, internal citations omitted.)

“Under the Government

Claims Act (Gov. Code, § 810 et seq.), a public entity can be held liable for

either creating a dangerous condition on its property or failing to protect against such a condition when the entity had notice of the danger and sufficient time to remedy the situation.” (Tansavatdi v. City of Rancho Palos Verdes (2023) 14 Cal.5th 639, 647, internal citations omitted.)

“Although generally a question of fact, a property defect is not a dangerous condition as a matter of law if the court determines, ‘viewing the evidence most favorably to the plaintiff, ... that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury...’ ” (Nunez v. City of Redondo Beach (2022) 81 Cal.App.5th 749, 757; see Gov. Code, § 830.2 [“A condition is not a dangerous condition ... if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used”].)

“It is for the court to

determine whether, as a matter of law, a given defect is not dangerous. This is to guarantee that cities do not become insurers against the injuries arising from trivial defects.” (Fielder v. City of Glendale (1977) 71 Cal.App.3d 719, 734.)

[W]hen a court determines

whether a given defect is trivial, as a matter of law, the court should not rely merely upon the size of the depression. While size may be one of the most relevant factors to the decision, it is not always the sole criterion. Instead, the court should determine whether there existed any circumstances surrounding the accident which might have rendered the defect more dangerous than its mere abstract depth would indicate. As such, the court should view the intrinsic nature and quality of the defect to see if, for example, it consists of the mere nonalignment of two horizontal slabs or whether it consists of a jagged and deep hole. The court should also look at other factors such as whether the accident occurred at night in an unlighted area. Furthermore, the court should see if there is any evidence that other persons have been injured on this same defect.

(Ibid.)

“[W]hen two slabs of a

sidewalk are nonaligned horizontally, by a slight depression, such a defect may

be found to be trivial as a matter of law provided that there are no

aggravating circumstances attending the defect.” (Id., at p. 729.)

Defendant’s Burden

Here, the Court finds

Defendant provides evidence that the alleged condition – the uneven sidewalk –

is a trivial condition, and not a dangerous condition, as a matter of law.

(Motion, Separate Statement of Undisputed Material Facts (“SSUMF”), Nos. 3-10; Sanchez Decl. ¶¶ 3-4 Exhs. 6-7.)

In support of the Motion,

Defendant provides a declaration from Cathleen Sanchez, who is employed by the Office of the Long Beach City Attorney as

a Claim’s Investigator. She

declares that she was the Claims Investigator who received, reviewed,

and investigated Plaintiff’s Claim for Damages. (Sanchez Decl., ¶ 1.) On September 23, 2024, the Long Beach City Clerk

received Plaintiff’s Claim for Damages. (Id., ¶ 3.) On October 8, 2024, Ms. Sanchez went to the

area described in Plaintiff’s Claim for Damages where she photographed the

uplift in the sidewalk and took measurements. (Id., ¶ 4. Exh. 4.) At the Subject

Location, the uplift measured 1/2 inch. (Ibid.) No potholes, jagged

breaks, or jagged cracks were observed along any uplifts or seams between the

two pavers in the area where Plaintiff fell, nor was there the presence of

foreign substances such as grease or oil. (Ibid.) Ms. Sanchez declares

that she did not observe any signs of any prior repairs or patches to the

offset at the Subject Location. (Ibid.)

Overall, Defendant's

evidence shows the 1/2-inch defect in the sidewalk was of such dimension and

quality, absent any aggravating circumstances, to be trivial as a matter of

law. (See *Fielder*, supra, 71 Cal.App.3d at pp. 729, 734.)

Turning to the other

factors to consider when determining whether a defect is trivial as a matter of

law, Defendant presents evidence that the weather on the day of the incident

was "clear and sunny," the

sidewalk was mostly shaded by trees and the adjacent building, and there were

leaves on the ground. (SSUMF Nos.

2, 4-5.) Finally, Defendant also presents evidence that there are no records of

other trip and fall claims for the subject location, or for any repair requests

or repairs made to the sidewalk at or near the incident location of Plaintiff's

fall prior to the incident. (SSUMF Nos. 13-14, 23.)

Viewing the evidence most

favorably to Plaintiff, the Court finds the evidence demonstrates the size of

the defect, that Plaintiff encountered the defect on a "clear and sunny day," the sidewalk was mostly shaded by

trees and the adjacent building, there were leaves on the ground, there were no other persons injured

on this same defect to Defendant's knowledge either prior to or after the

incident, and that Defendant received no prior service requests or complaints for the Subject Area. The foregoing demonstrates the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury. (See *Fielder*, supra, 71 Cal.App.3d at pp. 729, 734; *Nunez*, supra, 81 Cal.App.5th at p. 757; Gov. Code, § 830.2.)

As such, the evidence carries Defendant's burden.

The burden shifts to

Plaintiff to demonstrate a triable issue of material fact.

Plaintiff's Burden

In opposition, Plaintiff argues that conflicting expert opinions preclude summary judgment based on triviality, citing *Kasparian v. AvalonBay Communities, Inc.* (2007) 156 Cal.App.4th 11, 30 (*Kasparian*) wherein the court held that "[i]n view of the competing, conflicting evidence presented by these experts, the trial court was foreclosed from relying on the trivial defect doctrine to grant summary judgment in favor of Landlord." *Kasparian* involved a plaintiff who fell on a brick paver walkway, and a defendant who argued the

triviality of the defect on summary judgment. The Kasparian Court took issue with the fact that the trial court “focused solely on the depth of the recession and on Kasparian's deposition testimony about nothing obstructing her view of the drain; the absence of debris or other foreign material on the ground; and the lighting conditions, namely, she fell on a sunny afternoon in a well-lit area. This focus was too narrow.” (Id. at 28.)

Here,

Plaintiff carries her burden in opposition to create a triable issue of material fact on the issue of triviality of the defect based on dueling declarations. Plaintiff proffers the declaration of her expert Mark J. Burns, B.E., J.D., a forensic engineering consultant. Mr. Burns has provided scientific analysis and an opinion that the defect was dangerous, not trivial, which could create a reasonable, material question for the factfinder. The Court agrees with Plaintiff that as required by *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 116, Plaintiff's expert has “explained the science” rather than merely drawn legal conclusions, providing peer-reviewed scientific data on human gait biomechanics, toe clearance measurements, and industry safety standards. Just as in *Kasparian*, this Court must avoid focusing too narrowly on the lighting conditions and one declarant's measurement of the height differential alone. Plaintiff's expert testimony creates a triable issue

of material fact necessary to meet her burden.

Thus, Defendant's Motion

for Summary Judgment is DENIED on the basis of triviality of the defect.

B. ISSUE 2: Plaintiff cannot establish

that City had actual or constructive notice of the alleged dangerous condition

(Gov't Code § 835(b)).

Defendant moves for summary judgment

on the grounds that the City did not have actual or constructive notice of the

condition prior to Plaintiff's accident. (Mot., p. 10.)

Defendant's

Burden

Here,

Defendant meets its burden. Defendant puts forth the following facts: The City

receives notifications through numerous channels including phone, mail, in

person, and smart phone applications. (SSUMF No. 17.) The information is

inputted into a centralized database system called Azteca Cityworks. The

service request is then routed to the appropriate City crew to do the work. (SSUMF

No. 19.) After inspection, the service request is updated to reflect any work

completed at the location. (SSUMF No. 20.) Raymond Valenzuela ("Mr.

Valenzuela"), City's Street Maintenance Supervisor for the City's Department of

Public Works, conducted a thorough search of City records prior to the incident to determine if the City had received any prior complaints, inspection requests, repair requests, or work orders regarding the subject location. (SSUMF No. 22.) Mr. Valenzuela's search revealed that the City had no prior requests for service or complaints at the subject location. (SSUMF No. 23.)

As

to constructive notice, which requires evidence that the dangerous condition "existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character" (Gov't. Code § 835.2(b)), Defendant's evidence is equally persuasive.

Based

on the foregoing facts, Defendant meets its burden to establish that it had no prior actual or constructive notice of the alleged defect. The burden now shifts to Plaintiff.

Plaintiff's

Burden

In opposition, Plaintiff argues that the City cannot benefit from its own failure to exercise due care in inspecting and maintaining its sidewalks by not creating a City budget that allocates

enough resources to the department which would be responsible for inspections. (Opp.,

p. 13.) Plaintiff also challenges Mr. Valenzuela's testimony regarding his search

for prior requests for service or complaints at the subject location.

Here,

Plaintiff carries her burden in opposition to create a triable issue of

material fact on the issue of notice. Plaintiff puts forth the following facts:

The City admits that for at least the ten years preceding the incident it did

not have a policy of regular sidewalk inspections and instead inspected

sidewalks only upon request, because it did not have enough employees. (PSSUMF

Nos. 2-4.) At Valenzuela's deposition, which was months after his declaration

was signed, Valenzuela stated that he did not try to locate calls for the

subject area and did not look in the City's database for prior complaints,

repair requests, or work orders for the subject area prior to the incident. (PSSUMF

Nos. 5-7.) Plaintiff's expert opines the most likely cause of the height

differential was tree-root growth beneath the sidewalk panels, which is a

gradual process that develops over multiple years rather than suddenly. (PSSUMF

Nos. 33-34.) The uplift was between 1/2 inch and 3/4 inch, and approximately

5/8 inch, based on photographic analysis. (PSSUMF Nos. 15, 29, 32.) By the

City's own criteria, sidewalk uplifts measuring one-half inch or greater are

tripping hazards. (PSSUMF Nos. 8, 30.) The uplift also exceeded the maximum

un-ramped change in level permitted by ADA standards. (PSSUMF Nos. 28-29.)

The

foregoing facts could create a reasonable, material question for the

factfinder.

Thus, the Motion for

Summary Judgment is DENIED on the basis of lack of notice.

CONCLUSION

Defendant City of Long Beach's Motion for

Summary Judgment is DENIED.

Moving party to give notice.